

Janakrani v. State of U.P. — recovery citation for disputed bill remitted to Executive Engineer under Clause 6.5

High Court of Judicature at Allahabad · Division Bench · 10 February 2020 · WRIT - C No. - 4678 of 2020 · WRIT - C No. 4678 of 2020 · **Writ disposed of; Clause 6.5 representation directed; coercive recovery stayed two months.**

HEADNOTE

A writ challenging a recovery citation as a disputed electricity bill is not decided on merits. The High Court directed the petitioners to file a detailed representation before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided in accordance with law within two months, and stayed coercive action on the citation for that period.

FACTUAL SUMMARY

Janakrani and another petitioned the Allahabad High Court after a recovery citation dated 14 October 2019 was issued against them for Rs.70,030. They claimed they were not even consumers of electricity under the Electricity Act. Counsel for the respondents submitted that the controversy was only as to the amount of the bill and could be dealt with by the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-bill-recovery-citation-representation-to-executive-engineer

HOLDING

Where a recovery citation is challenged as a dispute over the amount of an electricity bill, the writ court will not decide the quantum. The petitioners are to file a detailed representation before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, who shall consider it and pass an appropriate order in accordance with law within two months, with coercive recovery stayed for that period. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy Writ against a recovery citation for a disputed bill was disposed of by directing a Clause 6.5 representation to the Executive Engineer, without deciding the quantum. ¶ 1

6.5-representation-as-appropriate-remedy The Court accepted the licensee's submission that the bill-amount dispute could be dealt with by the Executive Engineer under Clause 6.5 and directed a time-bound representation with a short stay of coercive recovery. ¶ 1

clause-6.5-statutory-remedy-disputed-bill A controversy confined to the amount of the bill, culminating in a recovery citation, was treated as a Clause 6.5 matter for the Executive Engineer rather than a writ-court merits determination. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONERS WERE CONSUMERS UNDER THE ELECTRICITY ACT

The petitioners asserted they were not even consumers; the Court did not decide status and remitted the bill dispute to the Executive Engineer. ¶ 1

NOT DECIDED — CORRECTNESS OF THE RS.70,030 RECOVERY CITATION DATED 14.10.2019

Left to the Executive Engineer under Clause 6.5. ¶ 1

